25LBCV00124 25LBCV00124

County: los-angeles

Division: Civil Law and Motion

Department: S27

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1. Complaint

Plaintiff, Anansa So filed this action against Defendants, Mark Schulman and the Mark Schulman 401(k) Profit Sharing Plan – Roth Account for damages arising out of Defendants' attempt to collect on a debt owed by Plaintiff to non-parties, Richard Guido and Leigh Delport, who assigned their rights to collection over to Defendants.

2. 6/12/25
Hearing on Motion to Strike

On 6/12/25, the Court heard and granted Defendants' special motion to strike, finding the complaint arises out of the right to petition, and Plaintiff is not likely to prevail in light of the litigation privilege. The Court found the only cause of action not barred by the litigation privilege, the claim for violation of the RFDCPA, was barred by the statute of limitations.

3. 9/18/25
Hearing on Motion for Attorneys' Fees

On 9/18/25, the Court heard and granted Defendants' motion for attorneys' fees. The Court awarded $30,937.95 in fees and $1596.19 in costs.

4. Bond

a.
History of Bond

Plaintiff appealed the judgment and award of fees. Defendants filed various post-judgment motions, all of which were taken off calendar because Plaintiff posted bond in the amount of the fees and costs incurred to date. Substantial law and motion practice was involved in the setting of the bond and ultimate posting of the bond, which occurred on 6/02/26; the bond Plaintiff filed is in the amount of $48,802.

b.
Relief Sought

Defendants seek an order increasing the amount of the bond from $48,802 to $160,000, which they estimate is the amount to which the judgment will increase by the time the appellate process is finalized.

c. Authority

A party may challenge the sufficiency of security after the time limit for objection has passed upon a showing of either (1) good cause for failure to object within the required time limit, or (2) a change of circumstances. Thus, though sufficient in the first instance, a bond or undertaking may be objected to if it subsequently becomes insufficient (in amount, in eligibility of the sureties, etc.). See CCP §§995.930(c), 995.960(c). Subsequent objections are normally raised under the same noticed motion procedure applicable to initial objections.

If an appeal remains pending for a lengthy period of time, a bond or undertaking sufficient when posted may become insufficient because of the accumulation of postjudgment interest. In such instances, the superior court, upon respondent's noticed motion pursuant to CCP §996.010, may increase the amount of the security requirement, ordering a new or additional bond or undertaking. See Grant v. Superior Court (1990) 225 CA3d 929, 934-938.
This does not mean, however, that the moving party can automatically obtain repeated security increases pending daily accruals of postjudgment interest. A CCP §996.010 increase requires “a real, substantial possibility, not just speculation,” that the security has become insufficient and that an increase

“reasonably is necessary to assure the judgment creditor of the security to which he or she is entitled.” Id.

Thus, a §996.010 motion in this context should be made only when the accumulation of a substantial amount of postjudgment interest places the moving party's full recovery in jeopardy.

Unless the parties otherwise agree, a hearing on the motion must be held within two to five days after service of the motion. CCP § 995.950(a). The court has discretion to conduct the hearing in any manner it deems proper; it “may” (but it is not “required” to) receive testimony and other evidence “in the same manner as in the trial of a civil case.” CCP §995.950(b). After the hearing, the court must render an order determining the sufficiency or insufficiency of the bond or undertaking. CCP §995.960(a).

A court determination that the bond or undertaking is sufficient precludes any further objection to the security except upon a showing of “changed circumstances.” CCP §95.960(c). On the other hand, if it determines the security to be insufficient, the court must specify the insufficiency and order that appellant give sufficient security within five days, subject to a maximum 30-day court-ordered extension. CCP §§995.960(b)(1), 995.050, 1054.

Appellant's failure to give sufficient security within the court-prescribed time limit terminates the stay, so that enforcement of the judgment may proceed despite the appeal. CCP §§922, 995.960(b)(1). If necessary, the moving party can obtain an ex parte order dissolving the stay. CCP §995.960(b)(1).

d. Analysis

Defense Counsel adequately shows that the amount of bond is not sufficient to protect Defendants against the attorneys’ fees, costs, and post-judgment interest that continue to accrue and will continue to accrue through the conclusion of the appeal.

Due to the timing of the motion, Plaintiff will not have an opportunity to respond to the motion in writing prior to the hearing. The Court will therefore hear from Plaintiff orally at the time of the hearing if Plaintiff has an objection to the increased amount of bond.

The Court asks the parties to focus their argument on the issue of whether the amount of bond can be increased in light of appellate attorneys' fees that are being incurred on an ongoing basis. The purpose of the bond is to preclude Defendants from enforcing their judgment. Thus, the bond is typically in the amount of the judgment, plus any accrued interest. See authority above.

Defendants are asking the Court to increase the bond to reflect three different categories of fees and costs. First, they seek to increase the bond to reflect attorneys' fees and costs incurred at the trial court level during post-judgment proceedings. Second, they seek to increase the bond to reflect attorneys' fees and costs they predict will be incurred at the trial court level in the future in connection with post-judgment proceedings. Third, they seek to increase the bond to reflect the attorneys' fees and costs they predict will be incurred in connection with the appeal.

Defendants' judgment in this case consists entirely of attorneys' fees. The Court is not convinced, however, that this means the bond can be increased because fees are being incurred on an ongoing basis, especially when those fees are incurred at the appellate level and/or have not yet been incurred. There is not, currently, a judgment for any appellate fees. There is, therefore, no ability for Defendants to enforce any such judgment. If the Court were to grant the motion and require Plaintiff to post bond in the amount of $160,000, and if she were to fail to do so, Defendants would then have the right to enforce their existing judgment despite the ongoing appeal. This judgment, however, would remain in the much lower amount incurred at the trial court level to date, and not in the amount sought that incudes future trial court fees and costs and appellate fees and costs.

The Court has reviewed the 7/07/26 memorandum of costs after judgment, which indicates a total of $22,340 in attorneys' fees and costs have been incurred since judgment was entered. When $22,340 is added to the original judgment of $32,534.14, the total incurred to date is $54,874.14. The current bond is in the amount of $48,802. The Court is inclined to increase the bond amount from $48,802 to $54,874.14, but not to increase it to $160,000.

If the parties submit on the tentative ruling, the bond will be increased to $54,874.14 and Plaintiff will be required to post bond within five days.

Defendants are ordered to give notice.